

09.08.2022

Sanction for GDPR Violation

The National Supervisory Authority has completed in June 2022 an investigation into the operator CDI Transport Intern ☐i Interna☐ional SRL and found a violation of the provisions of art. 58 para. (1) lit. a) and e) and art. 12 para. (1) of the General Regulation on Data Protection.

As such, the operator was sanctioned administratively:

- with a fine of 34,630.40 lei (equivalent to 7,000 EURO) for violating the provisions of art. 58 para. (1) lit. a) and e) of the General Regulation on Data Protection;
- with a warning for violating the provisions of art. 12 para. (1) of the General Regulation on Data Protection.

The investigation was initiated following a notification indicating that the company's website lacked information regarding the method of collecting personal data, regarding the rights provided in art. 15-22 of the General Regulation on Data Protection that data subjects benefit from, regarding how to exercise these rights, and also regarding the fact that the operator has the obligation to inform data subjects in the event of a breach of personal data security.

During the investigation conducted, due to the fact that the operator did not provide the information requested by our institution within the legal deadline, a violation of the provisions of art. 58 para. (1) lit. (a) and (e) of the General Regulation on Data Protection was found.

At the same time, it was noted that the operator CDI Transport Intern ☐i Interna☐ional SRL did not ensure clear, complete, and correct information for the data subjects whose personal data is processed by the company, as it did not provide all the information required by the provisions of art. 12-22 of the General Regulation on Data Protection, such as those regarding the purpose of processing and the legal basis, the identity and contact details of the operator, the period for which the data will be stored or the criteria used to determine this period, and the conditions for exercising the rights. As such, a violation of the provisions of art. 12 para. (1) of the General Regulation on Data Protection was found.

At the same time, a corrective measure was ordered for the operator, ensuring the information of data subjects through the communication in a concise, transparent, intelligible, and easily accessible form of

all the information provided by art. 12 of
the General Regulation on Data Protection.

Legal and Communication Department
A.N.S.P.D.C.P.